

25PSCV04073 25PSCV04073

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Case Number: 25PSCV04073 Hearing Date: September 2, 2026 Dept: O

Tentative Ruling

(1) Defendants UNITED STATES JUDO, INC., NANKA JUDO YUDANSHA KAI, and AZUSA PACIFIC UNIVERSITY's Demurrer to Plaintiff's FAC is SUSTAINED with 30 days leave to amend re: improper lumping of defendants.

(2) DEFENDANTS' NOTICE OF MOTION AND MOTION TO STRIKE PORTIONS OF PLAINTIFF'S FIRST AMENDED COMPLAINT is MOOT.

The

parties are to telephonically meet and confer should a subsequent demurrer and MTS be filed.

Background

This case arises from an injury during a sports competition.

Plaintiff Yannick Darmon alleges the following against Defendants UNITED STATES JUDO, INC., dba USA JUDO, a corporation; NANKA JUDO YUDANSHA KAI, a Nonprofit Corporation; AZUSA PACIFIC UNIVERSITY (APU): In December 2023, Plaintiff competed a Judo competition held at APU; the tournament was organized by Nanka and "sanctioned, supported, or benefited by USA JUDO." During a match, Plaintiff hyperflexed his neck; He was transported emergently to the hospital.

On November 11, 2025, Plaintiff filed suit for the following seven causes of action (COAs):

1.

NEGLIGENCE

2.

GROSS NEGLIGENCE

3.

NEGLIGENT SUPERVISION

4.

NEGLIGENT HIRING, TRAINING, AND RETENTION

5.

NEGLIGENT ENTRUSTMENT/NEGLIGENT ENDORSEMENT

6.

VICARIOUS LIABILITY

7.

PUNITIVE DAMAGES

On March 13, 2026, a first amended complaint (FAC) was filed.

On June 22, 2026, the instant demurrer was filed.

On June 23, 2026, the instant motion to strike (MTS) was filed.

On August 20, 2026, oppositions were filed.

On August 26, 2026, replies were filed.

Discussion

Defendants bring forth the demurrer on the grounds that Plaintiff fails to plead the Fourth Cause of Action for Negligent Hiring, Training, and Retention, the Fifth Cause of Action for Negligent Entrustment/Negligent Endorsement, and the Seventh Cause of Action for Punitive Damages with sufficient particularity to state a claim. Defendants advance a variety of arguments, but the court will briefly address one as it goes unaddressed by Plaintiff in opposition: that the FAC improperly lumps the defendants. As argued by Defendants, the

FAC establishes that the three Defendants served materially distinct roles (a national governing body, a regional judo organization, and a premises owner). Yet the FAC does not distinguish their respective responsibilities, operational authority, or relationship to the individuals allegedly involved in Plaintiff's injury.[1]

The court agrees that a demurrer may be sustained where defendants were treated as one single actor and that courts routinely dismiss such conclusory allegations. (See, e.g., *Moore v. Regents of Univ. of Cal.* (1990) 51 Cal. 3d 120, 125 n.1 & 134 n.12; *Wilson v. Household Fin. Corp.* (1982) 131 Cal. App. 3d 649, 653.)

With that, the court sustains the demurrer with 30 days leave to amend.

At this juncture, the court will not reach the merits of the rest of the demurrer or the MTS (to strike punitive damages). Plus, the opposition at pages 8 and 9 discusses how the pleading can be further amended.

The parties are required to telephonically meet and confer should a subsequent demurrer and MTS be filed.

Conclusion

Based on the foregoing, the demurrer is sustained in its entirety with 30 days leave to amend; the MTS is moot.

[1] Defendants cite to *Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616 to support this proposition, but *Khoury* involves no such language. Page 616 involved discussion of a breach of an oral agreement and allegations regarding the uncertainty of nature and duration of said agreement.